

The Lubricating Oils And Greases (Processing, Supply and Distribution Regulation) Order, 1987

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The Lubricating Oils And Greases (Processing, Supply and Distribution Regulation) Order, 1987

UNION OF INDIA

India

The Lubricating Oils And Greases (Processing, Supply and Distribution Regulation) Order, 1987

Rule

THE-LUBRICATING-OILS-AND-GREASES-PROCESSING-SUPPLY-AND-DISTRIBUTION-REGULATION-ORDER-198

7 of 1987

Published on 28 March 1987

Commenced on 28 March 1987

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The Lubricating Oils And Greases (Processing, Supply and Distribution Regulation) Order, 1987

Published vide Notification No. G.S.R. 233, dated March, 20, 1987, published in the Gazette of India, Part 2, Section 3(1) dated 28th March, 1987

Last Updated 26th July, 2019

1.

Short title, extent and commencement.

(1)

This Order may be called the Lubricating Oils and Greases (Processing Supply and Distribution Regulation) Order, 1987.

(2)

It extends to the whole of India.

(3)

It shall come into force on the 1st day of April, 1987.

2.

Definitions.

- In this Order, unless the context otherwise requires-

(a)

"competent authority" means any person or authority authorised by a State Government or a Union territory administration by notification in the official Gazette, to exercise the powers and to perform the functions of the competent authority under this Order for such area as may be specified in the notification;

(b)

"lubricating oils and greases" shall have the meaning assigned to them in item number 11-A of the First Schedule to the Central Excise and Salt Act, 1944 (1 of 1944) and shall include any speciality oil falling under item number 68 of that Schedule;

(c)

"processor" means any person carrying on or proposing to carry on the business of processing, manufacturing, blending, compounding, packaging, or refining or sale of any lubricating oil and grease and includes his representative or agent but does not include the oil companies specified in Schedule 1 appended to this Order;

(d)

without prejudice to the meaning assigned to "adulteration" under the Prevention of Food Adulteration Act, 1954 (37 of 1954

), any lubricating oil or grease shall be deemed to be adulterated if the same does not meet the specifications declared therefor by the processor.

3.

Restriction on processing and storage of lubricating oils and greases.

- No person shall carry on the business of a processor except under and in accordance with the terms and conditions of a valid licence granted to him under this Order.

4.

No person shall carry on the business of processing, manufacturing, blending, compounding, packaging, refining, re-refining, selling or transporting any lubricating oil or grease which has been adulterated.

5.

Application for grant or renewal of a licence.

(1)

Any person desiring to carry on the business of a processor shall make an application to the competent authority in Form 1 appended to this Order for the grant or renewal of a licence, together with a fee of rupees twenty-five.

(2)

On receipt of an application under sub-clause (1) the competent authority after making such enquiry as it considers necessary, shall by order in writing, either grant or renew the licence in Form 2 or refuse to grant or renew the same.

(3)

Where the competent authority refuses to grant or renew a licence it shall record the reasons for so doing and a copy of the reasons so recorded shall be furnished to the applicant.

(4)

In granting or refusing to grant or renew a licence the competent authority shall have regard to matters such as the following, namely,-

(a)

the existing or proposed facilities for manufacturing and testing lubricant and grease;

(b)

the availability of base stocks, raw materials and additives for manufacturing lubricant and grease; and

(c)

the types and specifications of lubricant and grease which the processor is manufacturing or proposing to manufacture.

(5)

All existing processors shall obtain the licence under this Order within six months of the commencement thereof.

(6)

An application for the renewal of licence shall be made three months before the date of expiry of the existing licence.

(7)

Every licence granted under this Order shall remain valid, unless renewed for a further period of five years, till the end of five years from the date of its issue or till it is cancelled under clause 6, whichever is earlier.

6.

Cancellation of licence.

- The competent authority may, without prejudice to any other action that may be taken against a processor under the Essential Commodities Act, 1955 (

10 of 1955

), order in writing cancel a licence for breach of any of the terms and conditions of the licence and a copy of the order shall be furnished to the processor:

Provided that no licence shall be cancelled under this clause unless the processor has been given reasonable opportunity of being heard in the matter.

7.

Appeal.

- Any person aggrieved by an order made by the competent authority under Clause 5 or under Clause 6 may, within thirty days of the receipt of a copy of the Order by him, prefer an appeal to the State Government and the State Government may after giving the applicant an opportunity of being heard confirm, reverse or modify such order.

8.

Power of entry, search and seizure.

(1)

Any police officer not below the rank of an Inspector or any other officer of Government of rank equivalent or higher thereto, authorised in this behalf by the Central Government or a State Government may, with a view to securing compliance with this Order or to satisfying himself that this Order or any order made thereunder has been complied with-

(a)

enter and search any place, premises, vessel or vehicle which the officer has reason to believe, has been, or is about to be, used for the contravention of this Order,

(b)

seize-

(i)

stocks of lubricating oils, greases and processing equipments,

(ii)

any package, covering or receptacle in which lubricating oils and greases are found, and

(iii)

any animal, vehicle, vessel or other conveyance used in carrying lubricating oils and greases, which the officer has reason to believe has been, or is being or is about to be, used for contravention of this Order;

(c)

send samples of any lubricating oil or grease seized under sub-paragraph (i) of paragraph (b) to any of the laboratories mentioned in Schedule II appended to this Order, for analysis with a view to knowing the nature and extent of adulteration.

(2)

The provision of Section 100 of the Code of Criminal Procedure, 1973 (2 of 1974) relating to search and seizure shall, as far as may, apply to searches and seizures under this Order.

9.

Power of Central Government to issue directions.

- The Central Government may, from time to time, by general or special order, issue to any processor such directions as

it consider necessary regarding the processing, storage, transport and disposal of lubricant and grease and upon the issue of such directions, such processor shall be bound to comply therewith.

I

[See Clause 2(c)]

Names of Oil Companies

(i)

Indian Oil Corporation Ltd., G-9, Ali Yavar Jung Marg, Bandra (East), Bombay - 400051.

(ii)

Indian Oil Blending Ltd., Pirpau, Trombay, Bombay.

(iii)

Bharat Petroleum Corporation Ltd., Bharat Bhavan, 46 Currimbhoy Road, Ballard Estate, Bombay - 400 038.

(iv)

Hindustan Petroleum Corporation Ltd., 17-Jamshedji Tata Road, Churchgate, Bombay - 400 020.

(v)

Balmer Lawrie and Company Ltd., 21, Netaji Subhash Marg, Calcutta - 700 001.

(vi)

Indrol Lubricants Specialities Ltd., White House, 91, Walkeshwar Road, Bombay - 400006.

(vii)

Petrosil Oil Co. Ltd., Apeejay House, 3, Dinsha Wacha Road, Bombay - 400 020.

(viii)

Tide Water Oil Co. (India) Ltd., 32, R. Kamani Marg, Ballard Estate, Bombay - 400038.

Form I

[See Clause 5(1)]

Processing, Manufacturing, Blending, Refining, Compounding, Packaging, Re-refining of Lubricant and Grease

Type of Lubricant and Grease

Specifications (the relevant ISI specification

if produced to such specification, otherwise the specification to which the product would be or is being made)

Brand name of trade name of the product, if any

Quantity (in kilo litres and in value in (Rs.

approx) of production during two previous calendar years

(i)

Engine/Crank case oil.

(ii)

Gear Oils.

(iii)

Industrial Oils.

(iv)

Greases.

(v)

Speciality.

(vi)

Others (Specify).

Application for the grant of a licence to carry on the profession of a processor

Note. - This application form is for registration of an existing unit, renewal of a licence as well as for a unit proposed to be established and is to be filled in accordingly. Please state whether application is being made for.

(i)

Licensing of an existing unit,

(ii)

Licensing of a unit to be set up, or

(iii)

Renewal of a licence:

(1)

Name and full address of the processor.

(2)

Name and address of the partners/directors.

(3)

Location of the Unit.

(4)

Capital investment in the project:

(a)

Land.

(b)

Building.

(c)

Plant and Machinery.

(5)

Date of commencement of production.

(6)

Capacity of the Plant (Kilo Litres)

(7)

No. of Shifts per day.

(8)

Details of production.

(9)

The sources and details of procurement of base oils and additives.

(10)

Process details.

A brief description of the process.

(11)

Storage Capacity available/planned:

(a)

for raw material,

(b)

for intermediate products,

(c)

for finished products.

(12)

Statement of utilities giving sources, quantities, assurance of supply:

Electricity (kWh).

Fuel Oil (kl).

Coal (Tonnes).

Water.

Others.

(13)

Total manpower employed/to be employed.

(14)

Plant Facility (existing or planned).

Please give details of equipment including laboratory equipment, for quality control.

(15)

Statutory regulations on environment.

(1)

Whether clearance from the concerned environmental authority has been obtained ?

(2)

If yes, give particulars.

(16)

Any additional information.

Signature of applicant.....

Name (In Block letters).....

Place.....

Date.....

Form No. 2.

[See Clause 5(2)]

Form of Licence for Registration of an existing Unit/Proposed Unit/Renewal of Licence

Licence No.....

Date of Issue.....

Valid up to.....

Licence to carry on the business of a processor is hereby granted to the party, at the place and subject to the terms and conditions mentioned below and to the provisions of the Lubricating Oils and Greases (Processing, Supply and Distribution Regulation) Order, 1987.

Description of the party, the location of the unit and the specifications of the product(s):

1. (i) Full name of the holder of the licence.

(ii)

Address in full.

2. Location of the unit.

3. Location of the storage attached to the unit.

4. Capacity of the unit (in kilo litres).

5. Products produced/to be produced and their specifications.

Products:

(i)

Motor Oil

(ii)

Gear Oils

(iii)

Industrial Oils

(iv)

Greases

(v)

Others (specify).

(Relevant ISI Specifications, if product is of ISI specification, otherwise details of the specifications to which produced or proposed to be produced).

If licence has been renewed, particulars of the licence renewed.

Competent Authority

Date.....

State of.....

Terms and Conditions of the Licence

1. The licence is issued subject to the provisions of the Lubricating Oils and Greases (Processing, Supply and Distribution Regulation) Order, 1987.
2. The holder of the licence shall maintain correctly and completely such records as are necessary for verifying the particulars given in the application form of the applicant and this licence granted to him.
3. The holder of the licence shall permit an officer authorised by the competent authority under the provisions of the Lubricating Oils and Greases (Processing, Supply and Distribution Regulation) Order, 1987 to inspect the places where processing of lubricating oils or greases is being undertaken, shall furnish samples thereof shall permit on demand by such officer such records or documents in his possession or under his control and shall allow to enter or search any premises and seize any article to which this Order applies.

Competent Authority.

State of.....

II

[See Clause 8 (1) (c)]

Laboratories for Testing of Petroleum Products Samples

(Subject to the availability of requisite facilities)

Hindustan Petroleum Corporation Ltd. Laboratories.

(1)

Hindustan Petroleum Corpn. Ltd Fuels Refinery

Division Laboratory, Corridor Road, Mahul, Bombay - 400 074.

(2)

Hindustan Petroleum Corpn. Ltd., Lubes Refinery

Laboratory, Corridor Road, Mahul, Bombay - 400074.

(3)

Hindustan Petroleum Corpn. Ltd., Visakh Refinery

Laboratory, P.O. Box. 50, Vishakapatnam - 530001.

(4)

Hindustan Petroleum Corpn. Ltd., Mazagaon

Laboratory, Haybunder Road, Bombay - 400033.

(5)

Hindustan Petroleum Corpn. Ltd., Budge Budge

Laboratory, Budge Budge, 24, Parganas, West Bengal - 743319.

(6)

Hindustan Petroleum Corpn. Ltd. Laboratory,

98/99 Elaya Mudali Street, P.O. Box No. 1170, Washermanpet P.O.,
Madras.

(7)

Hindustan Petroleum Corpn. Ltd. Laboratory,

Rohtak Road, Shakurbasti, Delhi - 110056.

(8)

Hindustan Petroleum Corpn. Ltd. Laboratory, P.B.

No. 43, Gandhidhan (Kachchih) - 370201.

(9)

Hindustan Petroleum Corpn. Ltd., Vasco Terminal

Laboratory, P.B. No. 48, Vasco Da Gama, Goa.

(10)

Hindustan Petroleum Corpn Ltd. Ernakulam

Terminal Laboratory, P.B. No. 2611, Ernakulam, Cochin - 682031.

(11)

Hindustan Petroleum Corpn. Ltd., Loni Terminal

Laboratory, Loni Kalbhor, Pune - 412201.

Indian Oil Corporation Ltd. Laboratories.

(12)

Indian Oil Corpn. Ltd., (Marketing Division),
Allahabad Laboratory, Post Box No. 44, Allahabad - 211001.

(13)

Indian Oil Corporation Ltd., Ambala Laboratory,
G.T. Road, Pipeline Terminal, Ambala Cantonment, Pin - 133001
(Haryana).

(14)

Indian Oil Corpn. Ltd., Jalandhar Laboratory,
Suchipind, Jalandhar City - 144 009.

(15)

Indian Oil Corpn. Ltd., Mughalsarai Laboratory,
Mughalsarai - 232 101.

(16)

Indian Oil Corpn Ltd., Haldia Laboratory, P.O.
Haldia Refinery, Dist. Midnapur (West Bengal).

(17)

Indian Oil Corpn. Ltd., Port Blair Laboratory,
Andaman and Nicobar Islands, Port Blair.

(18)

Indian Oil Corpn. Ltd., Bangalore Laboratory,
Banasawadi Road, M.S. Nagar, Bangalore - 560033.

(19)

Indian Oil Corpn. Ltd., Antop Hill Laboratory,
Antop Hill, Wadala, Bombay - 400031.

(20)

Indian Oil Corpn. Ltd., Shakurbasti Laboratory,
Opp. Shivaji Park, Shakurbasti, Delhi - 100056.

(21)

Indian Oil Corpn. Ltd., Delhi Terminal
Laboratory, Gurgaon Road, Bijwasan, New Delhi.

(22)

Indian Oil Corpn. Ltd., Calcutta Airport
Terminal Laboratory, (Dum Dum Airport), Calcutta Airport,
Calcutta-700052.

(23)

Indian Oil Corpn. Ltd., Korkupet Laboratory,
Kathiavakkam High Road. Madras-600021.

(24)

Indian Oil Corpn. Ltd., Laboratory, Railway
Colony Road, Ahmedabad - 380019.

(25)

Indian Oil Corpn. Ltd., Rajabandh Terminal
Laboratory, Durgapur - 713212.

(26)

Indian Oil Corpn. Ltd. Laboratory, Sipara, Post
Persav, Poon Poon, Patna.

(27)

Indian Oil Corpn. Ltd. Laboratory, Near New
Jalpaiguri Station, Post Siliguri - 734401.

(28)

Indian Oil Corpn. Ltd. Laboratory, Village
Panchpara, P.O. Radhadashi, Dist. Howrah.

(29)

Indian Oil Corpn. Ltd. Laboratory, Ranambur,
Mangalore, Pin - 575010.

(30)

Indian Oil Corpn. Ltd., Laboratory, Wellington
Islands, P.B. No. 35, Cochin - 682003.

(31)

Indian Oil Corpn. Ltd. Nap(sic)Terminal Project
Laboratory, Opp. United Salt Works, Kandla Post-Post Office,
Kandla (Kutch).

(32)

Indian Oil Corpn. Ltd. Laboratory, P.B. No. 154,
Vasco De Gama, Goa - 403 001.

(33)

Indian Oil Corpn. Ltd. Laboratory, Malkapuram
Post Office, Vishakhapatnam - 530011.

(34)

Indian Oil Corpn. Ltd. Laboratory, Tuticorin
Harbour Project Premises, Tuticorin - 628004.

(35)

Indian Oil Corpn. Ltd. Laboratory, Post Office
Armapore, Kanpur - 208009.

(36)

Indian Oil Corpn. Ltd. Laboratory, 24, Parganas,
Budge Budge - 743319.

(37)

Indian Oil Corpn. Ltd. Laboratory, Post Office
Fateh Bagh, Industrial Estate, Sannath Nagar, Hyderabad - 500018.

(38)

Indian Oil Corpn. Ltd., Mathura Refinery
Laboratory, P.O. Mathura Refinery, Mathura - 281005 (U.P.).

(39)

Indian Oil Corpn Ltd., Barauni Oil Refinery
Laboratory, Dist. Begusarai - 851112 (Bihar).

(40)

Indian Oil Corpn. Ltd., Haldia Oil Refinery
Laboratory, Dist. Midnapur - 721606 (West Bengal).

(41)

Indian Oil Corpn. Ltd., Gauhati Oil Refinery
Laboratory, P.O. Noonmati, Gauhati - 781020 (Assam).

(42)

Indian Oil Corpn. Ltd., Gujarati Oil Refinery
Laboratory, P.O. Jawaharnagar, Dist. Vadodra - 391320.

(43)

Indian Oil Corpn. Ltd., (Assam Oil Division),
Digboi Refinery Laboratory, P.O. Digboi, Assam - 786171.

(44)

Indian Oil Corpn. Ltd., (R&D Centre),
Sector 13, Faridabad - 121001 (Haryana).

(45)

Indian Oil Blending Ltd. Laboratory, 'Pir Pau'
Trombay, Bombay - 400074.

(46)

Indian Oil Blending Ltd. Laboratory, Ennore High
Road, Tondiarpet, Thiruvottiyur Post, Madras - 600081.

(47)

Indian Oil Blending Ltd. Laboratory, P.B. 68,
C.G.R. Diversion Road, Paharpur, Calcutta - 700 043.
Bharat Petroleum Corporation Ltd.,
Laboratories.

(48)

Bharat Petroleum Corpn. Ltd., Refinery
Laboratory, Refinery Site, Mahul, Bombay - 400074.

(49)

Bharat Petroleum Corpn. Ltd., R&D Centre
Refinery Site Laboratory, Mahul, Bombay - 400074.

(50)

Bharat Petroleum Corpn. Ltd., Budge Budge
Installation Lab., Budge Budge, P.O. Budge Budge., Dist. 24
Parganas, West Bengal - 743319.

(51)

Bharat Petroleum Corpn. Ltd., Tondiarpet
Installation Lab., Tondiarpet, P.B. No. 1152, Madras - 600001.

(52)

Bharat Petroleum Corpn. Ltd., Shakurbasti
Installation Lab., Shakurbasti, Delhi - 110056.
I.B.P. Co Ltd., Laboratory

(53)

Research ; Development Laboratory, IBP Co. Ltd.,
Manesar Village, Distt. Gurgaon, Haryana.
Mobile Laboratories of Oil Companies

(54)

Mobile Laboratories of Oil Companies, (IOC, BPC,
IRP Co. HPC).
Other Refinery Laboratories

(55)

Bongaigaon Oil Refinery Ltd., Refinery
Laboratory, P.O. New Bongaigaon, Distt. Kokrajhan, Assam.

(56)

Madras Refinery Laboratory, Madras Refineries
Ltd., Manali, Madras - 600019.

(57)

Cochin Refinery Ltd., Refinery Laboratory, Post:
Ambalamugal, Cochin - 682 302.
Government Laboratories

(58)

Director of Airworthiness, Civil Aviation Deptt.
Laboratory, Block II/III East, R.K. Puram, New Delhi - 110066.

(59)

National Test House, 11/1, Judges Court Road,

Alipore, Calcutta - 27.

(60)

National Physical Laboratory, Pusa, New Delhi -
110 012.

Defence Laboratories

(61)

Chief Inspectorate of Materials, Inspectorate
General of Stores Laboratory, IGS Kanpur, P.B. No. 229, Kanpur.

(62)

Inspectorate General of Stores, Laboratory
(I.G.S.L.), DGI Complex, Madras - 600114.

(63)

Inspectorate General of Stores Laboratory, DGI
Complex, Hastings, Calcutta - 700022.

(64)

Inspectorate General of Stores Laboratory, DGI
Complex, Vikhroli, Bombay - 400083.

(65)

Indian Institute of Petroleum, Dehra Dun -
248005.

(66)

Indian Institute of Technology, Guindy, Madras.

(67)

Indian Institute of Technology, Hauz Khas New
Delhi.

(68)

Indian Institute of Technology, Powai, Bombay.

(69)

Indian Institute of Technology, Kharagpur.

(70)

Regional Research Laboratory, Uppal Road,
Hyderabad - 500007.

(71)

Forensic Laboratories in States/UTs.

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